

misunderstanding of the single publication rule. Specifically, it appears based on the wrong use of the phrase “cause of action.”

The single publication rule’s reference to “cause of action” is akin to that under the primary rights theory; “The violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.” (*Wulfjen v. Dolton* (1944) 24 Cal.2d 891, 895-96.) Thus, the single publication rule does not bar a plaintiff from asserting a claim – based on a single violation of a primary right – under several different legal theories. Rather, it serves to alter the common law principal “that each communication of a defamatory remark to a new audience constitutes a separate ‘publication,’ giving rise to a separate cause of action, [which] led to the conclusion that each sale or delivery of a copy of a newspaper or book containing a defamation also constitutes a separate publication of the defamation to a new audience, giving rise to a separate cause of action for defamation.” (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1243-1244.)

Ms. Scheuner fails, therefore, to persuade the Court that RORE’s claims, or any of them, are barred by the single publication rule.

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In The Matter of Allison Busse

26CV000841

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Bryan Vu v. Edward Erik Eriksson

26CV001045

SPECIAL MOTION TO STRIKE

TENTATIVE RULING: The motion is GRANTED IN PART. The second, third, fourth, and fifth causes of action are stricken from the Complaint pursuant to Code of Civil Procedure section 425.16. Paragraphs 14, 15, 16, and 18 of the Complaint are stricken pursuant to Code of Civil Procedure section 436, subdivision (a).

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Edward Erik Eriksson III moves, pursuant to Code of Civil Procedure section 425.16 (Section 425.16), for an order striking: “The Second Cause of Action (Wrongful Attachment), the Third Cause of Action (Wrongful Denial of Civil Due Process), the Fourth Cause of Action (Intentional Infliction of Emotional Distress), and the Fifth Cause of Action (Negligent Infliction of Emotional Distress), each in its entirety; and [t]he protected-activity allegations within the First Cause of Action (Conversion) and the Sixth Cause of Action (Financial Abuse of a Dependent Adult), specifically paragraphs 14 through 16 and 18 through 19 of the Complaint wherever incorporated into those causes of action The Second, Third, Fourth, and Fifth Causes of action in their entirety.” (Notice of Motion at 2:2-9.)

A. LEGAL BACKGROUND

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) “The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*)).

“[A] complaint is not a SLAPP suit unless the gravamen of the complaint is that defendants acted wrongfully by engaging in the protected activity.” (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 30.) “[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. [Citation.] Moreover, that a cause of action arguably may have been ‘triggered’ by protected activity does not entail that it is one arising from such. [Citation.] In the anti-SLAPP context, the critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity. [Citations.]” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89 (*Navellier*)).

B. LEGAL ANALYSIS

1. The Motion is GRANTED as to Strike the Second Through Fifth Causes of Action

Mr. Eriksson asserts that “[e]very count addressed in this motion is built on the same protected conduct: Eriksson’s pre litigation demand that a bank freeze the disputed accounts, Eriksson’s petition to a court to recover them, the interpleader that Eriksson’s petition produced, and his recording of a statutorily authorized notice of pending action.” (Support Memo at 5:4-8.)

The Court finds that Mr. Vu’s second through fifth causes of action are clearly based on the demand, by Eriksson’s counsel, to freeze the decedent’s assets, and the recording of the lis pendens relating to the Sacramento Superior Court action.³ (See, *e.g.*, Complaint at ¶¶ 14, 16, 18, 26, 36, and 39.)

“[C]ommunications in connection with anticipated litigation are considered to be ““under consideration or review by a . . . judicial body.”” [Citation.]” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1263.) “[A]lthough litigation may not have commenced, if a statement ‘concern[s] the subject of the dispute’ and is made ‘in anticipation of litigation “contemplated in good faith and under serious consideration” ‘ [citations] then the statement may be petitioning activity protected by section 425.16.” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268 [73 Cal.Rptr.3d 383].)

Here, Mr. Vu alleges that “[t]en days after Decedent’s passing, Defendant, by and through counsel, sent a letter to Susan Davis, Decedent’s financial advisor at JP Morgan Wealth Management (JPMS), demanding that all of Decedent’s accounts held at JPMS be frozen *in anticipation of litigation* by Defendant claiming he held a community property interest in the accounts.” (Complaint at ¶ 14. *Italics added.*) Moreover, a lis pendens is, by its very nature, a communication made in connection with litigation.

Moreover, Mr. Vu, by failing to file any opposition to the Motion, appears to concede that the activities underlying their causes of action are protected activities pursuant to Section 425.16.

Based on the foregoing, the Court finds that Mr. Eriksson has satisfied his initial burden.

As noted above, once the moving defendant satisfies his initial burden, “the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy, supra*, 154 Cal.App.4th at 1511.) Mr. Vu failed to file anything by way of opposition to the instant Motion. As such, he fails to establish such probability.

Based on the foregoing, the Motion is GRANTED as to the second through fifth causes of action.

2. The Court orders the Individual Allegations Stricken Pursuant to Code of Civil Procedure Section 436

Mr. Eriksson also asks the Court to strike “[t]he protected-activity allegations within the First Cause of Action (Conversion) and the Sixth Cause of Action (Financial Abuse of a Dependent Adult), specifically paragraphs 14 through 16 and 18 through 19 of the Complaint wherever incorporated into those causes of action. (Notice of Motion at 2:6-10.)

³ It is not apparent, to the Court, that any of Mr. Vu’s second through fifth causes of action are based on “Eriksson’s petition to a court to recover them [or] the interpleader that Eriksson’s petition produced . . .” (Support Memo at 5:4-8.) However, as these activities are clearly protected activities under Section 425.16, the question appears academic.

Again, “a complaint is not a SLAPP suit unless the gravamen of the complaint is that defendants acted wrongfully by engaging in the protected activity.” (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 30.) For purposes of anti-SLAPP analysis, a “so-called ‘mixed cause of action’...combines allegations of activity protected by the statute with allegations of unprotected activity.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 381-82 (*Baral*)). A special motion to strike may properly be granted as against the claims based on allegations of protected activity, even though such ruling does not dispose of an entire cause of action. (See *ibid.*)

First, the Court does not find that paragraph 19 is limited to allegations of protected activity. Rather, its reference to “Defendant’s actions as herein alleged” includes the acts alleged in paragraph 13. Mr. Eriksson does not argue that these alleged acts constitute protected activity under the anti-SLAPP statute. As such, the Court finds no grounds for striking paragraph 19, which alleges *consequences* arising from these various acts.

Moreover, it does not appear to the Court that the allegations of paragraphs 14 through 16 and 18 can, as a matter of law, support either the first or sixth causes of action.

“Essential elements” of a claim for conversion are that the defendant “exercised dominion over the [personal property] and converted them to his own use.” (*Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1489, 1507.) It thus does not appear that Mr. Vu *could* ground a claim for conversion on any of the protected activities discussed above because those activities do not involve his exercising dominion over the respective properties or converting either of them to this own.

As to the elder abuse claim, the Complaint alleges that Julie Huong Vu died on January 1, 2026. (See *id.* at ¶ 8.) It alleges that the subject letter from counsel freezing assets was sent “[t]en days after Decedent’s passing.” (*Id.* at ¶ 14.) Similarly, Mr. Vu alleges that the Sacramento action was filed on February 19, 2026, and that the lis pendens relating thereto was filed “upon Defendant’s filing of his Petition and Complaint.” (*Id.* at ¶¶ 15-16.) Thus, Mr. Vu explicitly alleges that all of the protected activities alleged occurred *after* Ms. Huong Vu passed away.

The Court is aware of no authority providing that an estate may maintain a claim for elder abuse based on allegations that a defendant took, secreted, appropriated, obtained, or retained real or personal property of an elder *after* the elder’s death. (See *Ring v. Harmon* (2021) 72 Cal.App.5th 844, 851.) [“No authority supports the notion that the personal representative of a probate estate, acting in that capacity, has standing to bring an elder abuse claim on behalf of a beneficiary of that estate”].)

Based on the foregoing, Mr. Eriksson fails to show that either the second or sixth cause of action arises out of the protected activities. For this reason, the Court does not have authority to strike paragraphs 14, 15, 16, and/or 18 pursuant to Section 425.16,

However, in light of the Court’s ruling granting Mr. Eriksson’s motion to strike the second through fifth causes of action, the finding that these allegations cannot, as a matter of law, support the first or sixth causes of action, renders the allegations irrelevant. While the Court does not have authority to strike paragraphs 14, 15, 16, and/or 18 pursuant to Section 425.16, it does

have authority to strike them pursuant to Code of Civil Procedure section 436 on grounds that they are irrelevant.

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In The Matter of Courtney Alohalani Robinson

26CV001137

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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****at 9:30 a.m.****

Leo Brajkovich v. LMR Destinations LLC et al

25CV001311

MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT,
CONDITIONAL CERTIFICATION, APPROVAL OF CLASS NOTICE, SETTING OF FINAL
APPROVAL HEARING DATE

TENTATIVE RULING: The motion for preliminary approval of class action settlement is GRANTED. The Court will sign the proposed order. The matter is set for a Final Approval Hearing on December 9, 2026, at 8:30 a.m. in Dept. B. The August 6, 2026 OSC re Dismissal is VACATED.